

21STCV11027 21STCV11027

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-25

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Case Number: 21STCV11027 Hearing Date: August 25, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 25, 2026

CASE NUMBER

21STCV11027, consolidated with 21STCV37117

MOTION

Motion to Reopen Discovery

MOVING PARTIES

Defendants Browning-Ferris Industries of California, Inc.,
Republic Services, Inc., and Moises Romero

OPPOSING PARTIES

Plaintiffs Grant Winfrey and Hector Munoz

MOTION

Defendants

Browning-Ferris Industries of California, Inc., Republic Services, Inc., and Moises Romero ("Defendants") move to reopen discovery for purposes of taking mental examinations of Plaintiffs Grant Winfrey ("Winfrey") and Hector Munoz ("Munoz"), collectively "Plaintiffs"). Plaintiffs oppose the motion.

ANALYSIS

In determining

whether to re-open discovery, the Court must consider the necessity of and reasons for the additional discovery, the diligence or lack thereof by the party seeking to reopen discovery in attempting to complete discovery prior to the discovery cutoff, whether permitting the discovery will prevent the case from going forward on the trial date or will otherwise prejudice any party, and any past continuances of the trial date.

(Code Civ. Proc., § 2024.050, subd. (b).) Defendants fail to address these factors in their motion. Instead, they argue

Plaintiffs should have stipulated to their mental examinations prior to the discovery cut-off date. However, Plaintiffs were not required to do so.

Pursuant to Code

of Civil Procedure section 2032.310, a party which seeks to require another party to submit to a mental examination must obtain leave of court. Defendants had ample opportunity to move for leave to conduct mental examinations prior to the discovery cut-off date, but they did not do so. As Defendants concede, they took Munoz's and Winfrey's depositions on October 12, 2022 and September 15, 2023, respectively. Defendants were on notice of Plaintiffs' claims of emotional distress no later than those dates, yet failed to diligently seek mental examinations.

Filing a motion scheduled for hearing after the discovery cut-off date has passed itself is reflective of Defendants' failure to satisfy Code of Civil Procedure section 2024.050's requirements.

Accordingly, the motion is denied.

Defendants are to

give notice of the Court's ruling and to file proof of service of same.